

	25-1491358	
6.	Hanson v. FCA US LLC 25-1465366	(Withdrawn)
7.	Henley v. Universal Protective Service, LP 25-1532290	The motion to compel arbitration of the claims of plaintiff Michael Henley (Plaintiff) filed by defendant Universal Protection Service, LP (Universal) is GRANTED as to the claims asserted against Universal. The motion is brought under both the Federal Arbitration Act ("FAA") and the California Arbitration Act ("CAA"). Both the FAA and the CAA require the existence of a valid arbitration agreement before arbitration can be compelled. (See 9 U.S.C. § 2 and <i>Code Civ. Proc.</i>, § 1281.2.) Here, Universal met its initial burden by attaching to its motion a copy of the purported arbitration agreement bearing Plaintiff's electronic signature. Plaintiff's declaration stating he did not recall electronically signing any arbitration agreement is sufficient to challenge the authenticity of the Arbitration Agreement. (See <i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165-166 and <i>Ruiz v. Moss Bros. Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 846.) The burden thus shifted to Universal to establish by a preponderance of the evidence that the signature was an act of Plaintiff. Universal met this burden. Universal relies on the declaration of its Director of Human Resources, Harlin Bhangoo. Mr. Bhangoo explains in detail the process for electronic review and signature for Universal's Arbitration Agreement. (See Bhangoo Decl. ¶¶ 8-12.) Mr. Bhangoo further states he reviewed electronic onboarding records pertaining to Plaintiff and the information he reviewed was entered into and stored in Universal's iCIMS system in the ordinary course of business at the time the Plaintiff completed the onboarding process in December 2023. (Bhangoo Decl. ¶ 14.) Mr. Bhangoo also states based on his review of Plaintiff's iCIMS employee account, Plaintiff successfully completed the onboarding process through iCIMS on December 12, 2023, "[d]uring which time, Plaintiff was presented with California Arbitration Agreement, and he expressly accepted the terms of the Agreement by signing it on December 12, 2023, at 5:44 p.m." (See Bhangoo Decl. ¶ 15.) Plaintiff argues the evidence shows a lack of security measures because Mr. Bhangoo admits that in addition to Plaintiff, "a select group of authorized Human Resources personnel who work for Universal" have access to Plaintiff's online account. (Bhangoo Decl. ¶ 10b.) However, Mr. Bhangoo also attests that "[t]hose employees only have the ability to view and print completed onboarding documents in read-only mode." (<i>Ibid.</i>) Mr. Bhangoo further declares only the potential employee "using his or her correct username and unique password may electronically access and sign onboarding documents with his or her electronic signature, including the Agreement." (Bhangoo Decl. ¶ 10d.) Mr. Bhangoo also attests that he "reviewed Plaintiff's Arbitration Agreement and there were no revisions or